

26STCV06250 26STCV06250

County: los-angeles

Division: Civil Law and Motion

Department: 507

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Case Number: 26STCV06250 Hearing Date: July 22, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: July 22,

2026 TRIAL DATE: Not Set

CASE: Yung Tae Kim v. Yungae Kristy Kim

CASE NO.: 26STCV06250

MOTION TO QUASH

MOVING PARTY: Defendant

Yungae Kristy Kim

RESPONDING PARTY: Plaintiff Yung Tae Kim,

individually and as Successor in Interest to Sun Shon Kim

CASE HISTORY:

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02/25/26: Complaint

filed.

TENTATIVE RULING:

Defendant's motion to quash is GRANTED.

Moving Party to
give notice.

BACKGROUND

Plaintiff alleges that his sister, Defendant, induced Decedent Sun Shon Kim to execute powers of attorney over Decedent's assets, including a bank account which had an estimated \$600,000. When Decedent passed away, Plaintiff alleges he discovered that all of her assets were transferred to Defendant.

DISCUSSION:

Defendant moves to quash service of the summons and complaint, arguing that she moved to Korea in 2023 and has resided there continuously ever since (Kristy Kim Decl., ¶ 2), and thus, Defendant was required to be served pursuant to the Hague Convention.

Code of Civil Procedure section 418.10, subd. (a)(1) states: "A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes . . . (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her."

CCP § 413.10, subdivision (c) states "[e]xcept as otherwise provided by statute, a summons shall be served on a person: . . . Outside the United States, as provided in this chapter or as directed by the court in which the action is pending, or, if the court before or after service finds that the service is reasonably calculated to give actual notice, as prescribed by the law of the place where the person is served or as directed by the foreign authority in response to a letter rogatory. These rules are subject to the provisions of the Convention on the "Service Abroad of Judicial and Extrajudicial Documents" in Civil or Commercial Matters (Hague Service Convention)."

Persons who reside abroad must ordinarily be served pursuant

to the Hague Convention. "If the internal law of the forum state defines the applicable method of serving process as requiring the transmittal of documents abroad, then the Hague Service Convention applies." (Volkswagenwerk Aktiengesellschaft v. Schlunk (1988) 486 U.S. 694, 700.) "Failure to comply with the Hague Service Convention procedures voids the service even though it was made in compliance with California law. [Citation.] This is true even in cases where the defendant had actual notice of the lawsuit." (Kott v. Superior Court (1995) 45 Cal.App.4th 1126, 1136; see also Whyenlee Industries Ltd. v. Superior Court (2019) 33 Cal.App.5th 364, 368.)

The primary method requires member states to designate a 'Central Authority' to receive requests of service, arrange for service of documents, and return proofs of service. (See arts. 2–7, Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters, Nov. 15, 1965, 20 U.S.T. 361, T.I.A.S. No. 6638, reprinted in Fed. Rules Civ. Proc., foll. rule 4, 28 U.S.C.) Alternative methods of service are detailed under articles 8, 9, 10, 11 and 19." (Denlinger v. Chinadotcom Corp. (2003) 110 Cal.App.4th 1396, 1398–1399.)

Here, Plaintiff does not dispute that Defendant maintains a residence in Korea. However, Plaintiff argues that Defendant maintains an active California professional license and maintains a mailing address in California. Thus, Plaintiff contends he acted reasonably in attempting substituted service in California.

But this does not excuse Plaintiff's non-compliance with the Hague Convention. In *Lebel v. Mai* (2012) 210 Cal.App.4th 1154, the Court held that service on Defendant in California was improper as Defendant lived in England, and therefore service had to be effected in accordance with the Hague Convention. There, Plaintiff had served Defendant in California at a residence. Defendant had given Plaintiff the mailing address of that residence to remit payment of rent. (*Id.*, at 1158.) The Court held that it was undisputed that Plaintiff knew Defendant was residing in England, and thus Plaintiff failed to present evidence that Defendant was other than a resident of England at the time service was attempted. (*Id.*, at 1159.) Accordingly, Plaintiff was required to show that service of process on Defendant comported with the Hague Convention regarding service on an individual in a foreign country, or a proper basis for why the Hague Convention did not apply. (*Id.*, at 1160.) Plaintiff argued that service was nonetheless properly

effectuated under California law, the Court disagreed. (Id.) Plaintiff also argued, in effect, that if a foreign address is unknown, a party may simply disregard the Hague Convention and attempt service in any manner prescribed by state law. Again, the Court disagreed. (Id., at 1161.) In sum, the Court held that one must undertake some reasonable effort to ascertain a party's foreign address before resorting to state law service. (Id., at 1161-1162.)

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such, Plaintiff's argument that he acted reasonably in attempting substitute service in California is unavailing. This proposition was rejected by Lebel. Here, like in Lebel, Plaintiff does not dispute, and in fact, admits he knew that Defendant lived in Korea prior to attempting service. (Opp., pg. 1:27; Tae Kim Decl., ¶ 3.) Thus, Plaintiff "was required to show that service of process on defendant comported with the Hague Convention regarding service on an individual in a foreign country, or a proper basis for why the Hague Convention did not apply." (Lebel v. Mai, supra, 210 Cal.App.4th at 1160.) Further, to the extent Plaintiff contends he did not know Defendant's address in Korea, Plaintiff was required to undertake a reasonable effort to ascertain Defendant's foreign address before resorting to state law service. (Id., at 1161-1162.) Instead of making efforts to ascertain Defendant's foreign address, Plaintiff made efforts to ascertain Defendant's domestic address, which is improper. Plaintiff has provided no evidence that he undertook some reasonable effort to ascertain Defendant's address in Korea before resorting to state law service.

CONCLUSION:

Accordingly, Defendant's motion to quash is GRANTED.

Moving Party to give notice.

IT IS SO ORDERED.

Dated: July 22, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.